

IN RE: KNECHT

Case Number: 25CV-0206916

Tentative Ruling on Petition for Change of Name: Petitioner Tina Lynn Knecht seeks to change her name to Tina Lynn Mendez. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

RABO AGRIFINANCE, LLC VS. WOOLERY, ET AL.

Case Number: CVCV21-0198097

Tentative Ruling on Motion to Be Relieved as Counsel: Jacob Wright of McCarthy & Rubright, LLP moves to be relieved as counsel for Defendants West and Ruth Wollery, dba Wollery Livestock. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. It requires the use of mandatory Judicial Council forms and evidence supporting service of all forms, including the proposed order, on the client as well as information related to why the motion has been brought instead of filing the substitution of attorney. CRC 3.1362(c) requires the supporting declaration to provide an explanation as to why the motion is necessary in place of a filing a consent to substitution under CCP § 248(1). Counsel's declaration and motion provide the requisite justification to be relieved, show proper service of all required documents and that the motion was served at the client's current address. The declaration also establishes that counsel confirmed Plaintiff's mailing address within the last 30 days by telephone. The Court finds that the requirements of CRC 3.1362 have been satisfied. The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed. Counsel is relieved effective upon filing of the proof of service of the signed order upon the clients.

SANCHEZ VS. ACV AUCTIONS, INC., ET AL.

Case Number: 24CV-0206455

Tentative Ruling on Motion to Compel Arbitration: This is an employment action alleging harassment, wrongful termination, and wage and hour causes of action. Defendant ACV Auctions, Inc. moves to compel arbitration. Plaintiff Sanchez opposes the Motion.

Merits: The Federal Arbitration Act ("FAA") like California law, codifies the strong public policy in favor of enforcing arbitration agreements. 9 U.S.C. § 1 et seq. The FAA applies to any written arbitration agreement in a contract evidencing a transaction involving interstate commerce. *Allied-Bruce Terminix Companies, Inc. v. Dobson* (1995) 513 U.S. 25, 277. A party seeking to enforce an arbitration agreement has the burden of showing FAA preemption. (*Woolls v. Superior Court* (2005) 127 Cal.App.4th 197, 211.) Here, the Court finds that the FAA applies, as the Agreement expressly so states.

Existence of Agreement: CCP § 1281.2 requires the Court to grant a petition to compel arbitration where it determines that an agreement to arbitrate the controversy exists. The court makes this determination in a summary process. (See § 1290.2.) "[T]he trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: "Because the existence of the agreement is a statutory prerequisite to granting the